IN THE DISTRICT COURT OF APPEAL
OF THE STATE OF FLORIDA
SIXTH DISTRICT

CASE NO.: 6D2025-1778

BURNT STORE ISLES ASSOCIATION, INC.,
APPELLANT,

v.

STANLEY A. MUNSON AND DIANNE MARIE MUNSON,
APPELLEES.

L.T. NO.: 23-CA-004074

LIMITED BRIEF OF AMICI CURIAE PETER L. HANSEN AND LAUREL PHILLIPS IN SUPPORT OF APPELLANT ON REVERSAL, LIMITED TO REPRESENTATIVE AUTHORITY, NONPARTY TITLE RIGHTS, AND COMMON-ROOT / POST-ROOT MUNIMENT MRTA ANALYSIS

Amici Curiae Peter L. Hansen and Laurel Phillips in Support of Appellant

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STATEMENT OF IDENTITY AND INTEREST OF AMICI CURIAE

Peter L. Hansen and Laurel Phillips are record-title property owners in Punta Gorda Isles Section 15 who were not parties to the lower-tribunal action. They contend that the Final Summary Judgment uses subdivisionwide language concerning the 1970 Declaration of Restrictions and thereby creates uncertainty concerning their separately held title interests. Amici support Appellant to the extent Appellant seeks reversal of the judgment, but submit this limited brief to address an issue not adequately captured by labeling Burnt Store Isles Association, Inc. ("BSIA") a homeowners' association: the source and scope of BSIA's assigned enforcement authority are distinct from the separately held real-property interests of nonparty owners.

Amici have a related declaratory action, Case No. 25-001415-CA, concerning their own title and the legal effect, if any, of the judgment below upon them as nonparties. Their interest is therefore concrete and narrower than the merits dispute between BSIA and the Munsons.

SUMMARY OF ARGUMENT

The Court should avoid treating the shorthand label "HOA" as establishing mandatory membership or universal representative authority.

Section 720.301(9) Florida Statutes (2026), defines a homeowners' association by statutory elements that include mandatory membership as a condition of parcel ownership and authority to impose assessments that may become liens. A Florida nonprofit corporation, by contrast, may have members or no members, with membership rights determined by its articles and bylaws. § 617.0601(1)(a), Florida Statutes (2026). Corporate form alone therefore does not answer the Chapter 720 question.

The recorded developer assignment reviewed by Amici is narrower still. Its title states that it assigns the right to approve plans, specifications, and building locations and to enforce deed restrictions for Punta Gorda Isles Section Fifteen and Fifteen Replat. Its operative paragraph assigns BSIA "the right to enforce deed restrictions and to approve plans, specifications and locations of buildings" in those sections. It also requires BSIA to indemnify the developer from claims arising from BSIA's enforcement, approvals, or other action under the assignment. The instrument does not, on its face, assign title to every owner's reciprocal property interests, authorize BSIA to surrender those interests, or state that BSIA may bind nonmember owners in an adjudication extinguishing their separately held title rights.

The MRTA issue is narrower than a different-root theory. Amici contend that the 1971 Lesin Warranty Deed is the common subdivision root instrument: the first developer conveyance within the already-recorded PGI Section 15 scheme of development. The 1970 Plat and consecutively recorded Declarations predate that root; the Declarations state that the uniform use restrictions run with the land. Amici further contend that the Lesin deed and later title-carrying instruments preserve that recorded framework through the specific references contemplated by section 712.03(1). The later deeds and the 1978 Replat are not asserted as competing roots, but as post-root instruments that preserve, reaffirm, or continue the recorded interests within the continuous subdivision title framework. This Court's recent decision in *La Minnesota Riviera, LLC v. Riviera Golf Estates Homeowners Ass'n, Inc.*, No. 6D2025-0443 (Fla. 6th DCA Apr. 17, 2026), relying on *Cunningham v. Haley*, 501 So. 2d 649, 652 (Fla. 5th DCA 1986), confirms that the statutory inquiry focuses on qualifying muniments that carry title and form vital links in the chain.

ARGUMENT

I. THE STATUTORY LABEL "HOMEOWNERS' ASSOCIATION" SHOULD NOT SUBSTITUTE FOR PROOF OF BSIA'S ACTUAL STATUS AND AUTHORITY.

Section 720.301(9), Florida Statutes, defines a "homeowners' association" as a Florida corporation responsible for operation of a community in which the voting membership consists of parcel owners or their agents, membership is a mandatory condition of parcel ownership, and the corporation is authorized to impose assessments that, if unpaid, may become a lien. The label thus carries statutory predicates; it is not established merely because an organization enforces residential deed restrictions.

Chapter 617 confirms why the distinction matters. Section 617.0601(1)(a) provides that a nonprofit corporation may have one or more classes of members or may have no members, and places membership qualifications and rights in the articles or bylaws. Thus, describing BSIA as a Florida not-for-profit corporation does not itself establish Chapter 720 status, while voluntary membership, if established by the governing instruments, would be materially inconsistent with section 720.301(9)'s mandatory-membership element.

Amici therefore do not ask this Court to decide BSIA's corporate status from materials outside the appellate record. They ask only that the Court not infer statutory HOA status, mandatory membership, or authority to represent every Section 15 owner merely from counsel's terminology.

II. THE ASSIGNMENT'S EXPRESS GRANT OF ENFORCEMENT AND ARCHITECTURAL-APPROVAL POWERS IS NOT, ON ITS FACE, A TRANSFER OF EVERY OWNER'S SEPARATELY HELD PROPERTY RIGHTS.

The February 4, 1986 Assignment identifies Punta Gorda Isles, Inc. as Grantor and BSIA as a Florida not-for-profit corporation and Grantee. The recitals state that deed restrictions had been recorded for Section Fifteen and Fifteen Replat and that BSIA desired the right to enforce those restrictions and approve plans, specifications, and building locations to preserve residential standards for the subdivision.

The operative grant then assigns and BSIA accepts "the right to enforce deed restrictions and to approve plans, specifications and locations of buildings" in Section Fifteen and Fifteen Replat. The instrument contains an indemnification obligation tied to BSIA's enforcement and approval activity. Nothing on the face of the two-page instrument states that the developer transferred to BSIA title to all reciprocal servitude interests held by individual owners, appointed BSIA as litigation representative for every

owner, or authorized BSIA to consent to or obtain extinguishment of nonparties' separately held title interests.

The distinction is consequential. An assigned power to enforce a restriction is not necessarily ownership of every property interest benefited by the restriction. Nor does enforcement authority, without additional authority, necessarily establish adequate representation for purposes of binding persons who were not parties to the adjudication. *See Taylor v. Sturgell*, 553 U.S. 880, 893–95 (2008) (describing the general rule against nonparty preclusion and recognized exceptions).

Amici recognize that the Assignment was filed in their related Case No. 25-001415-CA and may not itself be part of the record transmitted in this appeal. They therefore do not offer it as new merits evidence through this brief. Its reviewed language explains Amici's interest and the legal issue the Court should avoid resolving by assumption. If the Court determines the scope of BSIA's representative authority is material to disposition, that authority should be determined from competent record material and the governing instruments, not from the shorthand "HOA" label.

III. THE COMMON SUBDIVISION ROOT MUST BE READ WITH THE QUALIFYING POST-ROOT MUNIMENTS UNDER SECTION 712.03(1).

Section 712.03(1) protects estates, interests, easements, and use restrictions disclosed by the muniments of title on which the estate is based beginning with the root of title, when pre-root interests are preserved by the statutorily specified identification. § 712.03(1), Fla. Stat. Amici's position is that the 1971 Lesin Warranty Deed is the common PGI Section 15 subdivision root instrument, not merely a root peculiar to one later owner. They contend it was the developer's first title conveyance after recordation of the 1970 Plat and uniform Declarations of Restrictions and carried forward the recorded scheme of development through the Plat reference and the conveyance subject to restrictions of record.

The preservation inquiry does not stop at the root. Amici contend that subsequent warranty deeds in the continuous subdivision chains repeat the statutory reference to the recorded Plat and restrictions, and that the 1978 Replat and later title instruments further preserve, reaffirm, or continue the recorded subdivision interests. Those instruments are asserted as post-root muniments or title transactions, not as alternative roots. The legal question is therefore whether the common root, read together with the qualifying

post-root instruments, preserves the identified pre-root interests under section 712.03(1) and other applicable MRTA exceptions.

La Minnesota Riviera confirms the importance of that muniment inquiry. There, this Court held that an affidavit referring to the earlier restriction was insufficient because it did not carry title. No. 6D2025-0443, slip op. at 4-6. In reaching that conclusion, this Court relied on *Cunningham v. Haley*, 501 So. 2d 649, 652 (Fla. 5th DCA 1986), which explains that muniments do more than merely affect title: they carry title and are vital links in the chain. Cunningham further examined whether post-root instruments specifically identified the earlier restrictions. *Id.* at 651-53. Thus, *Cunningham* and *La Minnesota Riviera* support examination of the actual title-carrying instruments beginning with the asserted root and continuing through the relevant post-root muniments.

Amici do not ask this Court to adjudicate their deeds or other materials outside the appellate record. Their related declaratory action presents those instruments for adjudication. The point here is one of permissible judgment breadth: a ruling concerning the Munson parcel should not be treated as extinguishing separately held property interests of nonparty owners without adjudicating the qualifying muniments through

which those owners' interests are carried and without a legally adequate basis for BSIA to represent them.

IV. THE JUDGMENT SHOULD BE CONSTRUED, OR ANY REMAND DIRECTED, SO THAT NONPARTY OWNERS' SEPARATE TITLE RIGHTS ARE NOT ADJUDICATED WITHOUT THEIR OWN TITLE RECORDS AND AN ADEQUATE BASIS FOR REPRESENTATION.

The Final Summary Judgment identifies the Lesin deed as the root for the Munson lots and states that the determination applies to all lots subject to the 1970 Declaration before declaring the Declaration extinguished and unenforceable. Amici's position accepts the significance of the Lesin deed as the common subdivision root but disputes the leap from that common root to subdivision-wide extinguishment. A common root does not eliminate the need to examine the qualifying post-root muniments and title transactions that may preserve, reaffirm, or continue the recorded interests in the affected owners' chains. Nor does it answer who possessed legal authority to litigate those separately held property rights on behalf of owners who were not parties.

The Court need not adjudicate Amici's title in this appeal. It can avoid unnecessary prejudice by limiting the effect of its decision to the parties and record before it, or by making clear on remand that separately held nonparty title interests remain subject to the MRTA analysis applicable to

their own muniments and to ordinary principles governing nonparty preclusion. Such a disposition would permit the appeal to resolve the parties' controversy without transforming an enforcement assignment into presumed authority to litigate away every owner's independent property interests.

CONCLUSION

Amici respectfully request that the Court grant leave to consider this limited brief and, in disposing of the appeal, (1) decline to presume Chapter 720 HOA status or universal representative authority from terminology alone; (2) distinguish BSIA's assigned enforcement authority from ownership of, or authority to adjudicate, nonparty owners' separately held property interests; (3) apply section 712.03(1), *Cunningham*, and *La Minnesota Riviera* by recognizing that the asserted common subdivision root must be considered together with qualifying post-root muniments rather than treating the Munson adjudication as automatically extinguishing interests carried through nonparty owners' title instruments; and (4) preserve for proper adjudication the rights of owners who were not parties and whose title instruments were not adjudicated below.

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was furnished through the Florida Courts E-Filing Portal and/or by electronic service to all parties and counsel of record on this 14th day of September 2026.

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CERTIFICATE OF COMPLIANCE

I certify that this brief complies with the font and word count requirements of Fla. R. App. P. 9.045(b) and Fla. R. App. P. 9.370(b). The certificate relies on the word count of the word-processing system used to prepare the brief, as Fla. R. App. P. 9.045(e) permits.

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